

November 7, 2017

CONFIDENTIAL – For Settlement Purposes Only

Mr. Michael Bissey
Mohave Transportation Insurance Company
2200 S. 75th Avenue
Phoenix, AZ 85043

RE: My Client: Kaleb Shields
Your Insured: Swift Transportation Company, Inc.
Your Insured's Driver: Tamirat Erichafo
Date of Loss: September 12, 2016
Claim No.: 1609130258332

Dear Mr. Bissey:

As you are aware, on September 12, 2016, my client, Kaleb Shields, was traveling south on IL Route 47 in Newcomb Township, Champaign County. Mr. Shields' vehicle came to a stop in the left turn lane at US Route 136. At that time, your insured's driver, Tamirat Erichafo, was driving a semi-tractor and trailer north on IL Route 47, toward the same intersection. As Mr. Shields turned left across the northbound lane of traffic, your insured's driver failed to obey the stop sign and drove directly into the rear passenger side of Mr. Shields' vehicle.

Your insured was issued a citation for **failure to observe a stop sign**, a violation of 625 ILCS 5/11-904.

Medical Treatment

Immediately following the collision, Mr. Shields was examined at the scene by paramedics from Gibson Community Hospital and was transported to the emergency department of Carle Foundation Hospital, with complaints of severe left shoulder pain. Physical examination revealed **swelling and tenderness in his left shoulder joint, with limited range of motion**. An X-ray of the left shoulder revealed a **left AC joint separation**. Mr. Shields was discharged and prescribed Sulindac for pain relief and a light duty work restriction for no lifting over five pounds with his left arm. He was advised to wear a sling for three days, apply ice to his left shoulder, and follow-up with his primary care physician.

On September 16, 2016, Mr. Shields had a follow-up appointment with Dr. Stephen Clark, at Carle Foundation Hospital. Dr. Clark examined Mr. Shields and noted continued tenderness in his left shoulder. Dr. Clark diagnosed Mr. Shields with a **grade 2 left AC joint separation**. (AC joint separations are graded in three categories, 1-3. A grade 2 indicates that it is a partial dislocation of the joint with the acromioclavicular ligament is completely torn). He was referred

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to physical therapy. Mr. Shields was given a work note with restrictions for no lifting on his left side. He was referred for further treatment in the orthopedic department.

On October 6, 2016, Mr. Shields had an initial physical therapy evaluation at Carle Therapy Services for his left shoulder with complaints of extreme pain when lifting his left arm and when lying on his left shoulder. Physical examination revealed left shoulder pain and reduced range of motion. Mr. Shields was instructed to return once a week, for four to six weeks, in order to decrease his pain and increase range of motion.

On November 15, 2016, Mr. Shields presented to Dr. Robert Gurtler at Carle Foundation Hospital with complaints of extreme pain in his left shoulder. Increased pain and popping and catching were noted while performing range of motion tests. Tenderness was noted in the shoulder and AC joint regions. Norco was prescribed for pain relief and an MRI of his left shoulder was recommended. On December 5, 2016, Mr. Shields obtained an MRI of his left shoulder at Carle Foundation Hospital.

On January 4, 2017, Mr. Shields had a follow-up visit with Dr. Clark at Carle Foundation Hospital, with continued complaints of pain in his left shoulder despite receiving physical therapy. On examination, tenderness and discomfort were noted in the left anterior humerus and AC joint. Dr. Clark diagnosed Mr. Shields with a left rotator cuff tear. Cyclobenzaprine, Norco, and Sulindac were prescribed for pain relief, and Mr. Shields was recommended to resume physical therapy.

From October 21, 2016, to February 28, 2017, Mr. Shields received physical therapy at Carle Therapy Services for his left shoulder. He continued to have discomfort despite receiving physical therapy. Mr. Shields was told to continue physical therapy twice a week for six weeks.

On March 9, 2017, Mr. Shields had a follow-up visit at Carle Foundation Hospital for his left shoulder injury. His range of motion had increased and he was released to return to work.

Medical Bills

As a result of his injuries, Mr. Shields became liable for medical bills in the amount of \$15,303.01.

Lost Wages

At the time of his injuries, Mr. Shields was employed as delivery personnel at First Community Care, LLC, earning \$14.66 per hour. As a result of injuries sustained in the collision, Mr. Shields missed 160 hours of work and 10 hours of overtime and suffered lost wages in the amount of \$4,022.50. Upon his return, Mr. Shields was placed on physical limitations and eventually lost his job.

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Pain and Suffering

Prior to the collision caused by your insured, Mr. Shields maintained a healthy and active lifestyle through regular workouts, martial arts, and his job transporting heavy oxygen tanks. As the records clearly indicated, Mr. Shields suffered from significant pain and limited range of motion following the collision. For the better part of six months he had difficulty with regular activities at home such as cooking, cleaning, shoveling snow, ice prevention and cleaning the gutters. While he participated in therapy and has returned to work, he continues to suffer from occasional pain with overhead and heavy lifting activities.

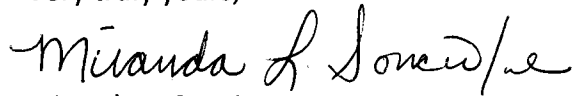
Conclusion

Enclosed you will find the following exhibits for your review:

1. Illinois Traffic Crash Report;
2. Medical Records;
3. Medical Bills and Billing Summary; and
4. Wage Loss Verification.

At this time, I would recommend **\$85,000.00** as full and final settlement of this claim. I will look forward to your response sometime in the next 30 days.

Very truly yours,



Miranda L. Soucie

msoucie@spiroslaw.com

MLS/wl

Enclosures

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